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Pope Francis's Teaching On Marriage And Sexuality: The Central Role of Pastoral Conversion in Shaping Pastoral Ministry

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Abstract

This paper explores Pope Francis's vision of pastoral conversion in shaping the Church's approach to marriage and sexuality. Rooted in the Second Vatican Council's mission-focused ethos, Francis emphasizes discernment, mercy, and inclusion, prioritizing individual consciences and subjective circumstances over rigid application of norm. He advocates a missionary Church that accompanies those in irregular situations, such as divorced and remarried Catholics, fostering their integration through pastoral flexibility without compromising the indissolubility of marriage. Drawing on the law of gradualness, he promotes incremental moral growth, recognizing that individuals may live in God's grace despite imperfect circumstances. Mercy, described as the "beating heart of the Gospel," drives Francis's call for a nurturing, non-condemning Church that balances tradition with innovative pastoral care. This approach invigorates family ministry by aligning it with Christ's compassionate love while addressing modern realities.

Introduction

Pope Francis emphasizes pastoral conversion as a transformative reorientation of the Church toward its missionary calling, insisting that local churches, central structures, and the papacy itself must

undergo this shift, driven by the Spirit of God (*Evangelii Gaudium*¹ §30, §32). Rooted in his ecclesiology, this conversion requires structures and processes to discern the voice of the living Lord, who continually speaks as the Church shares His Word with the world.² Drawing from Romans 12:2, which urges transformation through a renewed mind, Francis views conversion, or metanoia, as a profound shift in perspective, not driven by ideological agendas but by a Christian orientation toward God.³ *Lumen Gentium*⁴ §1 supports this, portraying Christ as the “light of the nations” and the Church as existing to reflect that light, with transient structures adaptable to better serve salvation. Pastoral conversion, thus, entails a deep reorientation toward God, Christ, the Holy Spirit, and salvation, grounded in genuine concern for the faithful.⁵

This conversion corresponds with the Second Vatican Council’s mission-focused vision, as articulated in Pope John XXIII’s 1962 opening address, *Gaudet Mater Ecclesia*, which rejected pessimism, embraced modern opportunities for evangelization, and called for a fresh Gospel presentation.⁶ Cardinal Suenens, during the Council’s first session in 1962, framed its purpose around Christ’s command to make disciples of all nations (Mt. 28:19-20), urging the Church to orient itself toward mission.⁷ *Gaudium et Spes*⁸ §45 defines the Church’s purpose as advancing God’s kingdom and humanity’s salvation, while *Dei Verbum*⁹ §1 emphasizes proclaiming the Gospel to foster faith, hope, and love. Francis corresponds with these impulses, asserting that all doctrine is pastoral and quoting John XXIII: “The deposit of the faith is one thing... the way it is expressed is another” (EG §41). This renewed presentation requires careful discernment within a primarily pastoral magisterium (EG §41).

In EG, Francis calls for the Church to be “permanently in a state of mission,” echoing Suenens, and stresses that all Church activity centers on the Word of God, which must be listened to, lived, and witnessed (EG §25).¹⁰ Evangelization demands that the

Church continually allow itself to be evangelized by this Word (EG §174).

The term “pastoral,” frequently used by Francis, implies both practical engagement with parishioners’ needs through relevant language and structures and a deeper transformation in pastors, rooted in humility to embody the Gospel authentically, a concept from John XXIII.¹¹ In a 2018 address to the Congregation for the Doctrine of the Faith,¹² Francis described its mission as “eminently pastoral,” defining pastoral care as guiding people with truth and mercy to rediscover their dignity and purpose in God’s plan, taking them by the hand when lost to recognize God’s fatherly love.¹³ Labeling the CDF pastoral underscores that all doctrine serves a pastoral purpose, blurring distinctions between doctrinal and pastoral roles, as the Church proclaims Christ’s life-giving words (Jn. 6:63).¹⁴

The Second Vatican Council used “pastoral” as a technical term, notably in GS, the Pastoral Constitution on the Church in the Modern World, which aimed to engage modern sensibilities while affirming doctrine’s unchanging nature. Francis reinterprets “pastoral” to prioritize people and their salvation over intellectual concerns, embodying a “preferential option for salvation” through actions and words, aligning with his principle that “realities are more important than ideas” (EG §231). This shift focuses on God’s salvation as the core message, requiring adaptations in style and language to incarnate pastoral conversion.¹⁵ A truly pastoral Church exudes closeness, with shepherds who “smell of the sheep,” as Francis depicted in his 2013 interview, *A Big Heart Open to God*, envisioning the Church as a “field hospital” and nurturing mother, urging ministers to accompany people mercifully, like the Good Samaritan.¹⁶ Structural reforms, he noted, are secondary to this attitudinal shift, a theme reiterated when urging the Roman Curia to overcome bureaucracy or the CDF to view its role pastorally.¹⁷

Francis weaves “pastoral” into *Evangelii Gaudium*, intertwining it with the Church’s missionary priority, calling for a

pastoral and missionary conversion that disrupts the status quo (EG §25). He envisions a “missionary option” transforming customs, schedules, language, and structures to serve evangelization rather than self-preservation, making activities more mission-oriented, inclusive, and open, inspiring pastoral workers to foster friendship with Jesus (EG §27).¹⁸ Citing *Unitatis Redintegratio* 6, he underscores that Church renewal stems from fidelity to its calling, requiring continual reformation as a human institution guided by Christ (EG §26).¹⁹ Viewing the Church as the pilgrim people of God, Francis favors a dynamic, evangelizing community over a rigid hierarchy, rooted in the Trinitarian mystery but existing historically as a pilgrim (EG §111). This eschatological humility allows evaluation of structures and practices for their mission service, aiming to facilitate encounters with Christ through kerygmatic proclamation and self-giving love, not merely to increase numbers (EG §27).²⁰

By prioritizing discernment, mercy, and inclusion, he seeks to transform pastoral care to embrace those in complex situations, such as divorced or remarried Catholics, fostering a Church that accompanies rather than condemns. The following sections explore how Francis's teachings reshape pastoral approaches to marriage and sexuality, emphasizing a compassionate, mission-driven Church that balances tradition with innovative flexibility.

1. The Role of Discernment in Pope Francis's Pastoral Approach to Marriage and Sexuality

Pope Francis emphasizes discernment as a central element of pastoral care, viewing it as a deeply personal process that engages individual biographies, intentions, capacities, and circumstances, rather than relying on generalized judgments, as emphasized in his letter to the bishops of the Buenos Aires Pastoral Region.²¹ In *Gaudete et Exsultate*,²² he describes discernment as an examination of inner desires, fears, and external "signs of the times" to identify paths to true freedom (GE §166-8), essential for navigating worldly or malevolent influences, relies on reason enlightened by Divine

Revelation and faith to distinguish good from evil (GE §44). In AL, discernment shifts the moral focus from norm application to conscientious reflection, addressing the gap between the faithful's lives and Magisterial ideals (AL §298). Nicholas Austin highlights its theological prominence, noting that the term "discernment" appears 44 times in AL, compared to 16 mentions of "conscience," underscoring its theological prominence.

Francis trusts discernment to recognize Christians' spiritual growth, rejecting the manualist view that individuals in irregular situations habitually live in mortal sin (AL §298). He avoids formulaic approaches, which risk impersonal norm application, and instead emphasizes the individual's virtues and dispositions (AL §300).²³

Discernment involves attuning to God's will, recognizing good even in adversity, as he states, "Our faith is challenged to discern how wine can come from water and how wheat can grow in the midst of weeds" (EG §84). Inspired by Ignatian spirituality, it culminates in accepting movements toward God and rejecting those that lead away (*Spiritual Exercises* §313; EG §51). Pastoral care must clearly communicate Church teachings while avoiding judgments that ignore situational complexities, with priests showing sensitivity to individuals' distress (AL §79).²⁴ Discernment, informed by the Gospel's demands for truth and charity, guards against misconceptions like granting easy exceptions or sacramental privileges through favors.²⁵

A discerning mindset, Francis contrasts, embraces ambiguity as a natural state, accepting initial uncertainties while trusting that clarity will emerge, making discernment a dynamic, open-ended journey (AL §303). He considers it vital for pastors navigating life's "shades of grey" and urges its cultivation in priestly formation, stating, "We need to teach future priests to discern in this grey area."²⁶ Acknowledging that his initial decisions may be incorrect, he stresses patient, reflective discernment.²⁷ Doubt and uncertainty are natural in a moral life open to God's

mystery, with conscience serving as the channel for divine guidance (AL §304). Referencing Aquinas, Francis notes that moral principles may falter in specific circumstances due to the distinction between primary and secondary natural law precepts, necessitating careful analysis (*Summa Theologiae* I-II, q. 94, a. 4; AL §304).

Effective discernment requires humility, discretion, love for the Church, a sincere search for God's will, and a desire to respond perfectly, safeguarding against laxity (AL §300). Francis underscores magnanimity—embracing both great and small,²⁸ which enables discernment to balance current realities with Kingdom aspirations without complacency (GE §44). Humility and magnanimity coexist in dynamic tension, fostering generosity and progress. The Gospel and Church teachings shape conscience, attuning individuals to God's guidance (AL §300).

Francis advocates an inclusive pastoral approach, avoiding marginalization, unlike historical confessors who prioritized norms over penitents' well-being (AL §299). In AL, confessors adopt a merciful, therapeutic role, avoiding rigorism and laxism, listening with God's heart to accompany souls toward reconciliation, enriching ministry (AL §301).²⁹ Thus, discernment, reliant on grace and prayerful reflection, facilitates life-affirming decisions without permissiveness (AL §300).³⁰

In the context of marriage and sexuality, Francis expands pastoral discernment beyond *Familiaris Consortio*³¹ in *Amoris Laetitia*, critically examining the Church's pastoral care and its impact on contemporary married life (AL §36). He identifies historical errors, such as limiting marriage to procreation, offering inadequate support for young couples, presenting an abstract theological ideal detached from reality, and prioritizing doctrinal issues over openness to grace (AL §36–37). These mistakes fostered a defensive pastoral attitude and a negative worldview, creating distance between the Church and families (AL §38).³² While affirming that certain actions are intrinsically wrong, Francis

stresses careful pastoral discernment in irregular marital situations drawing on his pastoral experience (AL §298, §304).³³

Referencing FC §84, he urges pastors to assess circumstances judiciously, distinguishing between forms of union to acknowledge their value, from ideal Christian marriages to those partially realizing it (AL §292).³⁴ Not all individuals in irregular situations live in mortal sin or lack sanctifying grace, and remarried individuals may show signs of the Spirit's presence in consolidated second unions marked by fidelity, self-giving, and Christian commitment, especially when returning to prior circumstances risks further sin (AL §298, §300, §301).³⁵

Francis advocates a nuanced approach for divorced and remarried Catholics, rather than universal canonical rules to address diverse situations (AL §300). He refrains from explicitly allowing sacramental access, as this would oversimplify complex factors like the first marriage's breakdown or the presence of children, entrusting discernment to local authorities (AL §300; EG §16).³⁶ This marks a shift from the 2000 clarification by the Pontifical Council for Legislative Texts, which held that civil unions meet criteria for sacramental exclusion under canon 915, by prioritizing case-by-case analysis.

Discernment balances justice and compassion, challenging the assumption that all remarried divorcees persist in grave sin, as circumstances may reduce culpability, rendering canon 915's prohibition non-universal.³⁷ Addressing the lack of inclusion plans for Catholics in divorce or cohabitation, Francis offers a pastoral framework prioritizing discernment over rigid classifications, fostering integration into parish life (AL §300).³⁸

2. Harmonizing Tradition and Innovation in Pope Francis's Teachings on Marriage and Sexuality

Pope Francis builds on the teachings of John Paul II and Benedict XVI in AL by introducing new perspectives while honoring Church tradition, achieved through juxtaposing traditional teachings with

innovative approaches and shifting rhetorical emphasis. In AL he uses the term "rule" thirteen times, often with negative connotations, acknowledging the importance of general rules while emphasizing that their universal application to all situations is unfeasible and should be avoided (AL §300).³⁹ He advocates for a nuanced approach to norms, consistently affirming faithfulness to and love for the Church's moral teachings, without dismissing traditional rules (AL §32, §86, §199, §211, §300, §308). He views rules as serving a teleological purpose, articulating a good that cannot be overlooked, but their formulation cannot account for every specific situation, suggesting a mindset akin to Roman law where the law expresses an ideal and its application is left to pastoral discretion based on particular circumstances (AL §304).⁴⁰ He warns against using Church teachings as "stones to throw at people's lives," illustrating with the example that Jesus would not reject a gay person approaching Him, highlighting a pastoral approach rooted in compassion rather than rigid judgment (AL §305).⁴¹

Connor M. Kelly's insights on moral theology highlight that Francis's teachings in AL suggest that while absolute norms may be articulated to address moral contingencies, they should not dominate moral reflection, which should focus on conscience and particular situations rather than general rules (AL §304).⁴² Francis engages Saint Thomas Aquinas's teaching on normative uncertainty, noting that general rules may not be obligatory in complex situations (AL §302, §304).⁴³

He emphasizes that true defenders of doctrine embody its spirit through God's love and forgiveness, as learned from the 2015 Synod, focusing on the Gospel's beauty rather than rigid formulas, a shift that redefines Catholic self-identity toward pastoral discernment over strict adherence to universal laws (AL §304, §305).⁴⁴ He aims to demonstrate the beauty of faith, focusing on the gospel rather than extensively discussing Church doctrine.⁴⁵

In the context of marriage and sexuality, Thomas Knieps-Port le Roi and Roger Burggraeve observe that Francis both upholds and challenges tradition.⁴⁶ The Magisterium traditionally upholds the indissolubility of marriage as an absolute norm rooted in Sacred Scripture, expressing fidelity to Christ's truth, a doctrine reaffirmed in FC (§84) and referenced by Francis four times in AL to underscore pastoral mercy (AL §307–308). However, Francis diverges from the strict application of this norm by emphasizing pastoral flexibility in complex situations.⁴⁷

The pastoral care of divorced and remarried individuals has evolved, with Francis advancing the concerns of his predecessors. Pope Paul VI, in an address to the Pontifical Council for the Family, stressed that those in irregular situations should remain under the Church's care.⁴⁸ The 1977 International Theological Commission statement, "The Catholic Doctrine on the Sacrament of Marriage," recognized new challenges in marriage doctrine, suggesting further clarification of sacramentality and consummation to deepen the presentation of indissolubility.⁴⁹ Following the 1980 Synod on the Family, John Paul II's FC urged pastors to keep divorced and remarried individuals connected to the Church but maintained the prohibition on their receiving Eucharistic communion (§84).

Joseph Ratzinger, as Archbishop of Munich-Freising, wrote to his priests post-1980 Synod, suggesting that those who believe their prior marriage was invalid could receive the Eucharist and advocating for further examination of hardship cases involving valid prior marriages.⁵⁰ In a 1972 article, Ratzinger proposed that the Church, while proclaiming the faith, might allow limited exceptions in emergency situations to avoid greater harm, such as permitting communion for a divorced and remarried person based on specific circumstances.⁵¹ This approach bears similarities to the later stance taken by Pope Francis. Ratzinger suggested that in emergency situations, the Church could permit limited exceptions to avoid greater harm, proposing a scenario in which a divorced and remarried person might be allowed to receive communion based on

the specific circumstances involved. However, in 1991, he distanced himself from this view in a letter to the *London Tablet*, aligning with *Familiaris Consortio*.⁵² In 1994, German bishops Karl Lehmann, Oscar Saier, and Walter Kasper issued a pastoral letter stating that Church law's general principles cannot cover every unique case, advocating for pastoral dialogue to support responsible conscience decisions about communion, which the Church should respect. The Congregation for the Doctrine of the Faith, led by Ratzinger in 1995, reaffirmed FC, prohibiting communion for those invalid prior marriages due to their contradiction of the Eucharistic union, prompting the German bishops to clarify that they accepted indissolubility but sought pastoral flexibility for unique cases.⁵³ Benedict XVI, in his 2007 *Sacramentum Caritatis*⁵⁴ §29 reiterated that remarried divorced individuals, while part of the Church, cannot receive communion.

In AL, Francis upholds the ideal of marriage characterized by exclusivity and stability, urging the Church to present this ideal clearly to avoid misunderstandings (AL §307).⁵⁵ He cites FC §84 regarding couples unable to separate for serious reasons, such as children's upbringing, but omits the requirement of living in continence in the main text, noting in a footnote that lacking certain expressions of intimacy may endanger faithfulness and children's well-being, referencing Vatican II's GS §51 on the risks to marital fidelity and fruitfulness when intimacy is disrupted (AL §298, §298n329).⁵⁶

In AL, Pope Francis balances the truth of mercy with the Church's commitment to the indissolubility of lifelong marriage, presenting deep, enduring love as intrinsic to human nature and a promise that fosters shared growth through life's challenges, inviting couples to embrace "the joy of love" even in sorrow (AL §307–308).⁵⁷ He upholds the Church's obligation to propose the full ideal of marriage and clearly express its objective moral teaching, emphasizing that maintaining the integrity of this teaching is essential (AL §307, §308, §311). However, Francis cautions against

a rigorous pastoral approach that imposes excessive conditions on God's mercy, warning that such rigidity risks diluting the Gospel's essence (AL §311).⁵⁸ This stance aligns with his broader vision, articulated in his 2015 Synod address, where he emphasized that true defenders of doctrine prioritize its spirit—God's love and forgiveness—over rigid adherence to its letter, noting that absolute certainty without doubt is not a positive sign.⁵⁹

Julie Hanlon Rubio argues that Pope Francis's approach in AL avoids prescribing a universal rule for divorced and remarried Catholics' access to the sacraments, anticipating variation and leaving implementation to local churches to determine contextually appropriate practices that embody mercy (AL §305). Francis references the family as society's fundamental unit, fostering coexistence, belonging, and faith transmission, underscoring its priority for Church and society (EG §66). Traditionalists expecting clear directives may be disappointed, as Francis, aware of contentious Synod discussions, establishes a new tone without mandating uniform changes, particularly regarding Eucharistic access for those in irregular situations (AL §297, §298).⁶⁰

In AL, Pope Francis warns against viewing situations in strictly black-and-white terms, criticizing priests who impose overly rigid standards of amendment on penitents, as this diminishes mercy and prioritizes a misguided notion of justice (AL §305). While acknowledging those who favor a stringent pastoral approach to avoid confusion, he disagrees, arguing that applying general, universal rules to all circumstances, a practice aligned with Pope John Paul II's teachings in *Veritatis Splendor*, fosters a superficial and judgmental attitude that overlooks the complex realities faced by families in distress (AL §308).⁶¹ Francis cautions that such an approach risks weaponizing moral norms against individuals' lives (AL §308).

Cardinal Gerhard Müller, in a May 12, 2016, speech to seminarians in Oviedo, Spain, argued that if Francis intended to overturn the traditional prohibition on communion for divorced and

remarried individuals, he would have stated it explicitly with reasons, claiming footnote 351 does not specifically address this group. However, this footnote appears in a section discussing “irregular situations,” a term Francis primarily uses for divorced and remarried individuals, and he provides justifications for a pastoral shift (AL §305, §297, §298). Müller, whose term as prefect of the Congregation for the Doctrine of the Faith ended in July 2017 without renewal, maintained that FC §84 remains unchanged, though the Congregation issued no official statement.⁶² In contrast, Cardinal Francesco Coccopalmerio, president of the Pontifical Council for Legislative Texts, published a booklet asserting that while continence is preferred, it may not be absolute in certain cases.⁶³

Francis's most explicit statements in this regard include his April 16, 2016 press conference response after visiting Lesbos, where he addressed sacramental access,⁶⁴ and his endorsement of the Buenos Aires bishops' guidelines, which allow divorced and remarried Catholics in certain cases to receive Penance and the Eucharist without strictly requiring continence, though living as continence is recommended. In his private letter responding to these guidelines' request for approval, Francis confirmed they fully articulate AL's Chapter VIII, stating “there are no further interpretations and praising their quality.”⁶⁵ This letter, initially leaked, was verified by *L'Osservatore Romano* and Vatican Radio, published on the Vatican website, and included in the *Acta Apostolicae Sedis* as “authentic magisterium” per Cardinal Pietro Parolin's note, resolving ambiguity for many despite skepticism from some commentators about its magisterial status.⁶⁶

Mathew Illathuparambil argues that AL does not explicitly allow communion for the divorced and remarried without continence, indicating that FC §84 and Sacrosanctum Concilium SC §29 remain unchallenged. However, Pope Francis's response to the Buenos Aires bishops suggests a non-absolutist approach.⁶⁷

Numerous commentators recognize that AL marks a significant shift in Catholic teaching, describing it as a development of doctrine, with Cardinal Christoph Schönborn asserting that this change represents an organic evolution rather than a rupture.⁶⁸ Cardinal Schönborn, tasked with presenting AL on April 8, 2016, explained that relegating significant shifts, such as sacramental access, to a footnote (AL §305n351) serves a symbolic purpose, encouraging readers to maintain a broader perspective rather than fixating on this issue.⁶⁹ Drawing on Cardinal Schönborn, Mariusz Biliniewicz highlights a shift in the Church's rhetoric, moving from universally binding rules with no exceptions, as presented in VS, to recognizing that rigid rules cannot fully address every specific situation. This shift recognizes that merely applying moral laws to those in "irregular" circumstances is insufficient, acknowledging that individuals may face concrete situations where acting differently would lead to further sin, thus evolving from the previous emphasis on absolute adherence to moral norms even at the cost of life (AL §301).⁷⁰

Cardinal Walter Kasper highlights Benedict XVI's contribution to this development by suggesting that divorced and civilly remarried individuals unable to receive sacramental Communion could receive it spiritually. Cardinal Kasper also raises the question of why they could not also receive it sacramentally (SC §55). Kasper further argues that AL introduces a paradigm shift with profound implications for Catholic moral theology, sacramental theology, and pastoral practice, stating that while AL did not change everything explicitly, it transformed the framework implicitly.⁷¹ Basilio Petrà notes that AL maintains continuity with FC but advances by drawing on the broader tradition of Catholic moral theology, which posits that an objective contradiction in a penitent's life does not always preclude sacramental access when considering the penitent's overall good.⁷² Petrà, Schönborn and Kasper, along with other commentators, view AL's changes as a doctrinal development, positioning the document as a new starting

point for ongoing theological and pastoral discussions rather than a definitive conclusion.⁷³

3. The Significance of Subjective Morality and Personal Circumstances in Pope Francis's Approach to Marriage and Sexuality

In AL, Pope Francis articulates a pastoral approach that distinguishes between objective and subjective morality, arguing that individuals may engage in objectively sinful behavior without full subjective moral responsibility, allowing them to live in God's grace, love, and grow in charity while receiving the Church's assistance (AL §305). He emphasizes that a negative judgment about an objective situation does not equate to personal guilt, asserting that it is no longer accurate to claim all individuals in "irregular" situations are living in mortal sin or deprived of sanctifying grace (AL §301, §302).⁷⁴ This perspective aligns with the *Catechism of the Catholic Church*,⁷⁵ which recognizes that factors like ignorance, inadvertence, duress, fear, habit, psychological or social influences, affective immaturity, or anxiety can diminish or nullify guilt and responsibility (CCC §1735). Conor M. Kelly notes that this distinction, rooted in traditional Catholic understandings of mortal and venial sins, allows actions typically classified as mortal to be considered venial if committed without full knowledge or consent.

Pope Francis draws on Pope John Paul II's VS, which links objective gravity and subjective culpability to conscience, stating that actions arising from invincible ignorance or non-culpable errors may not be attributable to the individual, and one must follow an erroneous conscience if it stems from such ignorance (VS §62, §63; AL §303). AL §302 upholds this distinction, acknowledging the Church's robust framework for reflecting on mitigating factors, as outlined in CCC §1735 and §23522, and emphasizes case-by-case moral discernment through individual conscience (AL §302, §303).⁷⁶

Pope Francis argues that rules alone are insufficient, emphasizing that individuals aware of moral norms may face circumstances, such as responsibilities toward children in a second marriage, that prevent them from acting differently without incurring further sin (AL §301).⁷⁷ AL §298, quoting FC §84, describes second unions established over time with new children, fidelity, selfless giving, Christian commitment, and awareness of irregularity, where reverting to prior situations could burden conscience and lead to further sin.⁷⁸ Adelaide Madera notes that as the link between irregular situations and grave faults diminishes when worthy circumstances are considered, individuals may not be in mortal sin or devoid of grace (AL §301).⁷⁹

This teaching reflects Francis's broader pastoral approach, emphasized in a letter cited in *L'Osservatore Romano* on September 23, 2016, which prioritizes direct personal interaction over programmatic or legal mediation, accompanying individuals in their specific contexts to foster faith within the Church community.⁸⁰ He upholds objective moral norms as a framework for perfection but shifts emphasis to a subject-oriented approach, focusing on complex relationships, personal intentions, and circumstances rather than neoscholastic deductions from general laws, expressing an ethics of capabilities and support that considers personal limitations (AL §305).⁸¹

Francis presents an elevated vision of family and married life while remaining attentive to the "imperfect" realities of modern families, advocating pastoral care that extends beyond conventional marriages to include cohabiting, civilly married, or divorced and remarried individuals, viewing their situations through Christ's compassionate perspective to support those in challenging circumstances (AL §78).⁸² AL provides guidance on discerning "the most generous response" attainable, supporting conscientious evaluation of realistic possibilities within one's circumstances, neither exceeding nor falling short of what is feasible (AL §303).⁸³

4. Conscience Formation for Moral Discernment in Pope Francis's Teachings on Marriage and Sexuality

Pope Francis emphasizes the centrality of conscience in pastoral care, particularly regarding marriage and sexuality, viewing it as the faculty through which individuals discern God's will in the present moment, as articulated in AL §303. Drawing from GS §16, he portrays conscience as the voice of God within, capable of revealing guilt and fostering humility to align choices with its judgments, though he acknowledges its fallibility, noting that truth is reached despite frequent errors (AL §202, §303).⁸⁴ The term "conscience" appears 14 times in AL, underscoring its critical role in moral discernment.⁸⁵

Francis recognizes the tension that conscience must be followed yet may err, necessitating formation to ensure sound moral discernment, particularly for integrating divorced and remarried Catholics, though also applicable to responsible parenthood decisions, which require a well-formed conscience free from subjective whims or social pressures (AL §37, §222).⁸⁶ FC stresses that educating the moral conscience enables individuals to discern paths for self-realization within God's moral order, a responsibility of the ecclesial hierarchy to guide through fidelity to the Magisterium, ensuring priests provide unified judgments to avoid distressing consciences (§8, §73).⁸⁷ However, Kelly argues that Francis rejects rigid, bureaucratic morality, urging the Church to accommodate consciences while clearly presenting the objective ideal to critique contradictory actions and encourage its pursuit (AL §37, §39, §297, §312).⁸⁸ Francis cautions that excessive focus on formation can overshadow personal conscience, urging pastors to form, not replace, consciences to preserve space for individual discernment in complex situations (AL §37). He calls for integrating individual conscience into Church practices, particularly for those in situations not fully aligned with the Church's understanding of marriage, such as divorced and remarried Catholics, proposing a conscientious examination to

assess subjective culpability regarding past marriages and new obligations (AL §300, §303).⁸⁹ Conscience, he asserts, goes beyond identifying failures to meet Gospel demands; it can sincerely discern, with moral assurance, the most generous response to God within one's limitations, remaining open to growth and decisions that progressively align with the ideal (AL §303).⁹⁰

As noted above, Francis emphasizes that the Church's role is to form consciences, not supplant them (AL §37),⁹¹ highlighting the internal forum's significance in addressing moral conscience in marriage and sexuality. The internal forum encompasses non-sacramental pastoral dialogue, often within spiritual direction, and sacramental confession, both addressed in AL's Chapter VIII. In non-sacramental dialogue, pastors provide authoritative moral counseling, acting as illuminators and companions to help believers evaluate past and present conduct, discern responsibilities, and access spiritual resources to seek and act according to God's will without overriding their discernment (AL §300). This time-intensive process supports believers in recognizing moral responsibilities in their unique situations, with decisions serving as initial norms for their conscience, though not universally applicable, reflecting the Catholic tradition of *epikeia* for equitable interpretation in specific circumstances (AL §300). AL §300, citing the 2015 Synod's final report, underscores that pastors aid believers in achieving awareness of their situation before God, forming accurate judgments about obstacles to fuller Church participation and steps to foster growth.⁹² AL §303 emphasizes cultivating an enlightened conscience, formed and guided by careful pastoral discernment, fostering trust in God's grace.

Illathuparambil highlights that Francis' principle of effective pastoral care in AL prioritizes strengthening marriages to prevent breakdown over merely addressing failures, requiring renewed commitment to education from families and the Church (AL §307). This education fosters personal conscience and enhances pastoral discernment, enabling individuals to make

meaningful lifelong choices in marriage and sexuality, promoting a dynamic, personalist view of moral life that balances objective ideals with conscientious discernment (AL §38).⁹³

5. Mercy as the Heart of Pope Francis's Pastoral Vision for Marriage and Sexuality

Mercy is a central theme in Pope Francis's papacy, deeply rooted in his experiences during Argentina's dictatorship and echoing Pope John XXIII's call for the Church to practice the "medicine of mercy" during Vatican II, as well as Aquinas's view that God's limitless mercy confers goodness unconstrained by human justice (AL §5; ST §I-II, q. 99, a. 6).⁹⁴

AL marks a significant evolution in the Church's approach to family pastoral care, emphasizing mercy more prominently than previous papal teachings. A quantitative analysis highlights this shift: John Paul II's FC mentions "mercy" twice, in the context of penance and a compassionate stance toward divorced and remarried individuals (FC §58), while Francis uses the term 44 times in AL, weaving it into a broader vision of pastoral care.

In AL, introduced during the Jubilee Year of Mercy, Francis emphasizes that pastoral care for families must be permeated by the logic of mercy, warning that neglecting this risks turning the Gospel into "dead stones to be hurled at others" (AL §5, §49, §307–312).⁹⁵ He portrays mercy as the "beating heart of the Gospel" and a revealed truth forming the core of Jesus Christ's revelation, compelling the Church to proclaim the entire Gospel and reach out to everyone without exception (AL §309).⁹⁶ For Francis, there is no conflict between mercy and truth; walking alongside those facing challenges, recognizing the Holy Spirit's presence in human weakness, and refraining from judgment reflect Jesus's teachings and embody truth rather than depart from it (AL §296).⁹⁷

Francis advocates for a Church that does not condemn but pours out God's mercy on those who seek it sincerely, describing this as the Church's way since the Council of Jerusalem,

characterized by reinstatement and unconditional charity (AL §296).⁹⁸ He likens the Church to a nurturing mother who, while clearly expressing objective teachings, embraces the goodness sown by the Holy Spirit amidst human weakness, even if it means getting her shoes muddy (AL §308).⁹⁹ This vision is analogous to Saint Alphonsus de Liguori's merciful discernment, critiquing rigorist approaches detached from pastoral engagement, and argues that AL invites a renewal of moral theology centered on this principle.¹⁰⁰

In addressing “irregular situations” such as divorced, remarried, or cohabiting Catholics, Francis calls for a pastoral transformation that actively includes those who may feel alienated, ensuring they are not treated as excommunicated but as valued members of the Church community (AL §297, §310–312; *Misericordia et Misera*¹⁰¹ §2).¹⁰² He warns against imposing excessive conditions on mercy, which strips it of its meaning and dilutes the Gospel, asserting that any theology questioning God's omnipotent mercy is inadequate (AL §311).¹⁰³ In MS, Francis declares that no repentant sinner can be excluded from God's unconditional and unmerited forgiveness, emphasizing that dioceses and parishes must not adopt a quid pro quo approach, such as demanding separation, when offering mercy (MS §2, §14).¹⁰⁴ Mercy, tied to love, compassion, forgiveness, and repentance, requires parishes to be places where individuals address sin, seek atonement, and experience mercy, fostering inclusion for those in irregular situations (AL §310–312; MS §2).¹⁰⁵

Francis promotes a positive vision of the Christian family to inspire striving toward the ideal while approaching those who fall short with compassion, acknowledging human limits over twenty times in AL (AL §308).¹⁰⁶ Pastors are encouraged to guide couples in nurturing love, resolving conflicts, and parenting, with sacramental Reconciliation and the Eucharist aiding in navigating marital challenges (AL §293–295).¹⁰⁷ The controversial footnote 351 suggests that, in some cases, divorced and remarried Catholics,

through discernment with pastors in the internal forum, may return to the sacraments if they have confessed their role in a prior marriage's failure, viewing the confessional as an encounter with mercy and the Eucharist as medicine for the weak, not a prize for the perfect (AL §305, §305n.351; EG §44, 47). This approach, which avoids mandating specific practices, opens the door to mercy without contradicting the Church's stance on sexual ethics, reflecting Francis's pastoral insight devoid of judgment (AL §305).¹⁰⁸

Francis reaffirms Paul VI's *Humanae Vitae*, noting Paul VI's advice to confessors to exercise mercy and consider individual circumstances, ensuring pastoral ministry addresses each person's situation without altering doctrine (*Humanae Vitae*¹⁰⁹ §29).¹¹⁰ He encourages pastors to move beyond rigid black-and-white thinking, helping those in irregular situations find ways to respond to God within their limitations, rather than obstructing growth (AL §305). Using the metaphor of a "multifaceted gem" or polyhedron, Francis illustrates that pastoral efforts should integrate the unique contributions of all, including those in irregular situations, ensuring everyone has a place in pursuing the common good, resonating with the Gospel's totality and the Father's desire that none be lost (AL §4; EV §236).¹¹¹

6. Gradual Moral Growth in Pope Francis's Support for Irregular Unions in Marriage

Pope Francis advocates a pastoral approach to marriage and sexuality centered on the principle of gradualness, which recognizes that moral development unfolds incrementally. This concept, detailed in AL §295, is deeply rooted in Catholic moral theology, as affirmed by John Paul II in FC §34 and applied by Benedict XVI in his 2010 remarks on HIV/AIDS prevention.¹¹² Drawing from Thomas Aquinas' stages of moral growth - (ST §II/II, q. 24.a.9, q.183.a.4)¹¹³ - gradualness acknowledges that individuals progress in moral understanding and action at varying paces,¹¹⁴ Pope Francis emphasizes that this "law of gradualness" is

distinct from a “gradualness of the law,” a point John Paul II clarified to underscore that God’s law is a command, not merely an ideal to be pursued (FC §34).¹¹⁵ Gradualness reflects the prudent exercise of free will by individuals who may not fully comprehend or enact the law’s demands (AL §295).¹¹⁶

Pope Francis rejects a dichotomy of guilt and perfection, instead guiding individuals toward growth without categorizing them as wholly good or bad. His pastoral pedagogy supports the flawed human condition, aiming to lighten its challenges gradually. In EV §44, Pope Francis stresses that evangelization must engage individuals within their unique contexts, valuing small steps forward even amidst significant human limitations. Pastoral care, therefore, demands “patient realism” (AL §271-3), balancing the affirmation of moral ideals with accompaniment tailored to an individual’s current circumstances. This approach reframes the law as a judicial encouragement rather than a punitive measure, focusing on attainable goals, as Schönborn has noted emphasizing engagement with specific situations, particularly in the internal forum.

AL addresses “irregular situations,” such as cohabitation or divorce and remarriage, viewing them as part of a developmental journey toward Gospel-aligned marriage (AL §294). Pope Francis encourages discernment to identify what God asks “for now,” fostering growth without requiring immediate adherence to Church teachings (AL §303). This aligns with the doctrine of fundamental option, which posits that a person’s fundamental orientation toward God persists despite imperfect actions, meaning divorce and remarriage do not automatically constitute mortal sin or justify sacramental exclusion (AL §301).¹¹⁷ The Church is tasked with discerning the “seeds of the Word” in imperfect circumstances (AL §76-77), transforming them into opportunities for growth.¹¹⁸

This personalistic approach, shaped by post-Vatican II moral theology, prioritizes the human person over a neo-scholastic focus on law. Unlike earlier theological perspectives that

highlighted human freedom and rationality, Pope Francis views individuals as burdened by life's challenges, needing encouragement rather than strict legalism (AL §305).¹¹⁹ Critics warn that gradualness risks eroding the law by accepting exceptions, but Francis, echoing John Paul II, insists it promotes openness to the objective ideal without altering the law itself (AL §300; FC §34). Discernment remains dynamic, enabling pastors to identify elements in individuals' lives that foster greater alignment with the Gospel (AL §293).¹²⁰

7. Integrating Irregular Unions into the Church

Pope Francis, in AL, promotes the integration of individuals in irregular unions, such as divorced and remarried Catholics, into the Church, viewing it as a pilgrim community that welcomes sinners. This perspective resonates with the theological understanding of the "sinful church," as articulated in responses to Vatican I's *Dei Filius* and developed in Vatican II's *Lumen Gentium* §7, §8 and §14. Rahner, referencing Austrian Bishop Stephen László, posits that the Church, comprising both justified individuals and sinners, bears the guilt of its members and requires constant purification, distinguishing between "valid" membership held by sinners and "fruitful" membership marked by grace, a concept echoed in LG's distinction between heartfelt and physical membership (LG §5, §8, §10, §12, §14, §26).¹²¹ Francis extends this by emphasizing that those in irregular situations, like divorced and remarried individuals, are not excommunicated but remain living members of the Church, capable of participating in its life through listening to God's word, attending Mass, prayer, charity, raising children in faith, and penance, as reiterated from John Paul II's *Familiaris Consortio* (FC §84; AL §243, §297, §299).

In his pastoral approach Pope Francis omits FC's directive for divorced and remarried couples to live as "brother and sister" and its rationale - that their state contradicts the Eucharistic union and risks confusion about indissolubility - opening possibilities for sacramental access (AL §297, §305). AL §299, quoting the 2015

Synod's *Relatio Finalis*, calls for discerning which forms of exclusion in liturgical, pastoral, educational, and institutional roles can be overcome, ensuring these individuals experience the Church as a welcoming mother.

The contentious issue of sacramental access is addressed indirectly in AL §300, which encourages responsible personal and pastoral discernment, noting that responsibility varies and the effects of rules need not be identical, with footnote 336 clarifying that in some cases, no grave fault exists, referencing EG (§44, §47) on the Eucharist as nourishment for the weak, not a reward for the perfect (AL §300, §300n336). Footnote 351, dubbed “the most famous footnote” in contemporary Church history,¹²² suggests that in certain cases, pastoral care may include sacraments like Reconciliation and the Eucharist, citing EG’s view of the confessional as an encounter with mercy and the Eucharist as medicine for the weak (AL §305, §305n351; EG §44, §47).¹²³ Francis’s response to the Argentinian Bishops’ guidelines, praised as accurately conveying AL’s Chapter VIII with “no other interpretations,” clarifies that when continence is not feasible, discernment may allow access to Reconciliation and the Eucharist, especially when mitigated responsibility or fear of further harm, such as to children, is considered, offering “highly welcome clarity” per Cardinal Reinhard Marx.¹²⁴

Historically, the Church’s approach to divorced and remarried individuals has evolved. Pope Paul VI emphasized their inclusion in pastoral care despite irregular status,¹²⁵ while SC §29 affirmed their baptized status and encouraged participation, though Benedict XVI maintained the Eucharistic exclusion while broadening non-sacramental roles like parish ministries and spiritual communion (SC §29). Progressive theological and canonical perspectives advocate de-juridizing indissolubility, expanding nullity cases, and promoting conscientious choices, drawing from Anglican and Orthodox leniency, though annulments address only partial cases of invalidity and breakdown.¹²⁶ Francis’s

broader welcome extends to LGBTQ individuals, exemplified by his “Who am I to judge?” stance and call for the Church to apologize for marginalization, advocating respect and inclusion without doctrinal shifts.¹²⁷

As mentioned above, Francis envisions the Church as a nurturing mother and field hospital, akin to the Good Samaritan, prioritizing the suffering of those in irregular unions over rigid exclusion, ensuring open doors for all seeking God (EG §47).¹²⁸ AL §305 reiterates that individuals in objectively sinful situations may not be subjectively culpable due to conditioning and mitigating factors, allowing them to live in grace and receive sacramental support, fostering integration into the Church community as fruitful members (AL §305).

Conclusion

Pope Francis's vision for pastoral conversion reorients the Church toward a missionary, merciful, and inclusive approach, particularly in the pastoral care of marriage and sexuality. Rooted in the Second Vatican Council's mission-focused ethos, Francis calls for a Church that prioritizes discernment, accompaniment, welcome, and integration—key terms emphasized by Cardinals Schönborn and Marx as foundational to AL's pastoral framework (AL §297).¹²⁹ These elements, while present in prior magisterial documents, gain unprecedented prominence in AL, marking a shift from the normative approach of FC to one grounded in the concrete realities of individual experiences (FC §84; AL §36–38). Unlike FC's evangelizing focus, AL adopts a distinctly missionary perspective, urging pastoral care to meet people where they are, avoiding theoretical preaching that fails to address real family challenges (AL §230).¹³⁰ Francis critiques the Church's historical defensive posture and excessive idealization of marriage, which he argues distances it from Jesus's compassionate example toward those in vulnerable situations, such as the Samaritan woman and the woman caught in adultery (AL §36, §38).¹³¹

Through discernment, Pope Francis emphasizes conscientious reflection over rigid norm application, fostering spiritual growth in complex circumstances while respecting individual consciences (AL §303). This approach, informed by the law of gradualness, recognizes moral development as incremental, encouraging attainable steps toward Gospel ideals without demanding immediate perfection (AL §295; FC §34). By distinguishing between objective and subjective morality, he acknowledges that individuals in irregular situations, such as divorced and remarried Catholics, may live in God's grace, supporting their integration into the Church as valued members (AL §301–305). The controversial footnote 351 exemplifies this, suggesting sacramental access in certain cases through pastoral discernment, viewing the Eucharist as medicine for the weak (AL §305n351; EG §44, §47). Francis balances tradition with innovation, upholding marriage's indissolubility while advocating pastoral flexibility, as seen in his endorsement of the Buenos Aires bishops' guidelines, which allow nuanced sacramental access.

Mercy, described as the “beating heart of the Gospel,” drives Francis's vision of a Church that accompanies rather than condemns, fostering an inclusive community that alleviates suffering and encourages new beginnings (AL §309; MM §2). Francis' pastoral magisterium fostered an ecclesial atmosphere for open discussion and Spirit-led discernment, prioritizing creative fidelity over definitive solutions.¹³² AL's gentle, welcoming tone, as observed by Roi and Burggraeve, avoids moralizing, reflecting a shift to a pragmatic, Gospel-aligned theology that empowers families as primary agents of the family apostolate through their joyful witness as domestic churches (AL §200).¹³³ Pastors, transformed into engaged companions, employ pedagogical and therapeutic skills to support individuals' faith journeys, cultivating inner freedom and responsibility with humility (AL §305).¹³⁴

Scholars like Cardinals Schönborn recognizes Pope Francis' teaching on pastoral conversion as a doctrinal

development, evolving pastoral paradigms without breaking continuity with *Familiaris Consortio*.¹³⁵ This continuity, grounded in evangelical discernment and pastoral mission, invigorates contemporary family pastoral care, aligning it with God's plan while addressing modern realities. By fostering a Church that journeys with all, Pope Francis's AL catalyzes ongoing theological and pastoral renewal, embodying Christ's inclusive love.

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